



SPONSOR: Sen. Walsh & Rep. Osienski & Rep. K. Williams
Sens. Hocker, Hoffner, Pettyjohn, Poore; Rep. Lambert

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 102

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO THE BOARD OF ELECTRICAL EXAMINERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 14, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§1402. Definitions.

The following words, terms, and phrases, when used in this chapter shall have the meanings ascribed to them under this section, except where the context clearly indicates a different meaning:

(1) "Apprentice electrician" ~~shall mean~~ means a person who is licensed by the Board and whose principal occupation is the learning and assisting in the performance of electrical services.

(2) "Board" ~~shall mean~~ means the State Board of Electrical Examiners established in this chapter.

(3) "Cut-in-card" ~~shall mean~~ means the approval certificate sent to the power company by the inspection agency after an inspection has been completed, which authorizes the power company to turn on the electricity at the property.

(4) "Division" ~~shall mean~~ means the State Division of Professional Regulation.

(5) "Dwelling" ~~shall mean~~ means, for purposes of this chapter, any enclosure that affords habitable living space for a human being or human beings.

(6) "Electrical inspection agency" ~~shall mean~~ means the agency responsible for the oversight and the issuing of certificates of inspection for all electrical work performed in this State.

(7) "Excessive use or abuse of drugs" ~~shall mean~~ means any use of narcotics, controlled substances or illegal drugs without a prescription from a licensed physician, or the abuse of alcoholic beverage such that it impairs that person's ability to perform the work of an electrician.

(8) "Full-time employee" ~~shall mean~~ means an individual, who is added to the company payroll and who has on file with the employer a W-4 form authorizing the employer to withhold taxes and who receives a wage or salary and who is under the supervision of a licensed electrician.

(9) “Homeowner” ~~shall mean~~ means, for purposes of this chapter, an individual who both owns and lives in that person’s home or dwelling.

(10) “Journeyman electrician” ~~shall mean~~ means a person who is qualified and skilled to perform electrical work and who has met the requirements of § 1408 of this title to be licensed as a journeyman electrician.

(11) “License” ~~shall mean~~ means the certificate issued by the Board that is evidence that the holder has met the requirements of this chapter.

(12) “Limited electrician” ~~shall mean~~ means a person licensed by the Board to plan, estimate, layout, perform or supervise the installation, erection or repair of any electrical conductor, molding, duct, raceway, conduit, machinery, apparatus, device or fixture, for the purpose of lighting, heating or power, in any structure which contains 4 or fewer dwelling units, as determined by the applicable building code.

(13) “Limited electrician special” ~~shall mean~~ means a person licensed by the Board to plan, estimate, layout, perform or supervise the installation, erection or repair of any electrical conductor, molding, duct, raceway, conduit, machinery, apparatus, device or fixture, for any of the following purposes: elevators, swimming pools, air conditioning, heating and oil burners, in any structure which contains 4 or fewer dwelling units, as determined by the applicable building code.

(14) “Master electrician” ~~shall mean~~ means a person, licensed by the Board, to plan, estimate, layout, perform or supervise the installation, erection or repair of any electrical conductor, molding, duct, raceway, conduit, machinery, apparatus, device or fixture for the purpose of lighting, heating or power in any structure.

(15) “Master electrician special” ~~shall mean~~ means a person, licensed by the Board, to plan, estimate, layout, perform or supervise the installation, erection or repair of any electrical conductor, molding, duct, raceway, conduit, machinery, apparatus, device or fixture for any 1 of the following purposes: elevators, swimming pools, electric signs, air conditioning, heating, refrigeration and oil burners, and overhead and underground primary distribution systems.

(16) “Person” ~~shall mean~~ means an individual, firm, partnership, corporation, association, joint stock company, limited partnership, limited liability company and any other legal entity and includes a legal successor of those entities.

(17) “Residential electrician” means a person who is qualified and skilled to perform residential electric work and who has met the requirements of § 1408 of this title to be licensed as a residential electrician and who is subject to the restrictions imposed by § 1422A of this title.

(18) "School apprentice electrician" means an individual who is licensed by the Board and who is currently enrolled at a Board approved vocational school and who is engaged in learning and assisting the performance of electrical services.

~~(18)~~(19) "Service" ~~shall mean~~ means, for purposes of this chapter, to repair or replace in kind.

~~(19)~~(20) "State" ~~shall mean~~ means the State of Delaware.

~~(20)~~(21) "Substantially related" means the nature of the criminal conduct, for which the person was convicted, has a direct bearing on the fitness or ability to perform 1 or more of the duties or responsibilities necessarily related to the work of an electrician.

~~(21)~~(22) "Supervision" ~~shall mean~~ means that a licensed electrician shall be fully responsible for all electrical work performed under that licensed electrician's license.

~~(22)~~(23) "Unlicensed practitioner" ~~shall mean~~ means any person, who engages in the occupational practices as defined in paragraph (12), (13), (14) or (15) of this section, and who has not been granted a license or a homeowner's permit by the Board.

§1406. Powers and duties.

(a) The Board of Electrical Examiners shall have the authority to:

(4) Evaluate the credentials of all persons applying for a license as limited electrician, limited electrician special, master electrician, master electrician special, journeyman electrician ~~and~~ apprentice electrician, and school apprentice electrician in this State, in order to determine whether such persons meet the qualifications for licensing set forth in this chapter.

§1408. Qualifications of applicant [For application of this section, see 81 Del. Laws, c. 290, §5]

(a) An applicant, who is applying for licensure as an electrician under this chapter, shall submit evidence, verified by oath and satisfactory to the Board, that such person:

(7) For licensure as an apprentice electrician shall:

a. Be at least 18 years of age ~~unless enrolled in a Board approved vocational program at a vocational school.~~

b. Be enrolled in ~~or have successfully completed~~ an apprentice program approved by the Board.

c. ~~Be enrolled in or have successfully completed a residential apprentice program approved by the Board.~~

d. ~~Residential apprenticeship licensees shall be limited to the scope of work as defined in § 1422A of this title.~~

(7A) For licensure as a school apprentice electrician shall:

a. Be enrolled in a Board approved vocational program at a vocational high school in the State.

§ 1411. Issuance and renewal of licenses.

(b) Each license, with the exception of apprentice electricians and school apprentice electricians, shall be renewed biennially, in such manner as is determined by the Division, and upon payment of the appropriate fee and submission of a renewal form provided by the Division, proof of general liability insurance as required by the Board, and proof that the licensee has met the continuing education requirements established by the Board.

(1) Apprentice electricians licensed 5 years or more prior to the effective date of this Act of July 1, 2026, shall not be eligible to renew past the license's current expiration date; however:

a. For good cause shown, the Board may, at its discretion, allow extensions of 1 year to enable the individual to complete an apprentice program approved by the Board.

b. Any such request must be made to the Board at least 60 days before the expiration date.

(2) Apprentice electricians licensed less than 5 years as of the effective date of this Act of July 1, 2026, shall not be eligible to renew and the license's expiration date shall be extended to expire 5 years from the current issue date; however:

a. For good cause shown, the Board may, at its discretion, allow extensions of 1 year to enable the individual to complete an apprentice program approved by the Board.

b. Any such request must be made to the Board at least 60 days before the expiration date.

(3) Any Apprentice electrician license issued on or after the effective date of this Act of July 1, 2026, will expire after 5 years and may be extended for good cause shown to the Board.

a. For good cause shown, the Board may, at its discretion, allow extensions of 1 year to enable the individual to complete an apprentice program approved by the Board.

b. Any such request must be made to the Board at least 60 days before the expiration date.

(4) School apprentice electrician licenses need not be renewed. These licenses remain valid as long as the license holder is enrolled in a Board-approved vocational program at a vocational high school in the State or has attained the age of 18, whichever is later.

(d) A licensee, with the exception of a school apprentice, upon written request, may be placed in an inactive status in accordance with the Board's rules and regulations. ~~The renewal fee of such person shall be prorated according to the amount of time such person was inactive.~~ Such person may reenter practice upon written request to the Board of the intent to do so, and completion of continuing education, as required in the Board's rules and regulations.

§1422. Apprentice electricians and student apprentice electricians.

(a) An apprentice electrician or student apprentice electrician must work under the direct onsite supervision of a licensed master electrician, master electrician special, limited electrician, limited electrician special, residential electrician or journeyperson electrician.

(b) A licensed electrician supervising an apprentice electrician or student apprentice electrician pursuant to subsection (a) of this section shall be responsible for the activities of the apprentice electrician or student apprentice electrician performing work in the State.

Section 2. This Act shall be effective July 1, 2026.

SYNOPSIS

This Act would limit the opportunity to remain as a licensed apprentice electrician after an individual has already completed an apprentice program approved by the Board of Electrical Examiners.

Apprenticeship is meant to be a first step on a career journey, not a destination. Since the apprentice electrician license was created, the ranks of apprentices have steadily swollen, but a significant number of those apprentices have not moved forward toward more advanced licensing. As the number of these apprentices grows beyond the capacity for more senior licensees to supervise their work, the situation is likely to create confusion among and to threaten the safety of consumers of electrical services in Delaware and the general public.

This bill also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Walsh